



EAGLE MOUNTAIN CITY COUNCIL MEETING MINUTES

OCTOBER 15, 2024, 4:00 PM

EAGLE MOUNTAIN CITY COUNCIL CHAMBERS

1650 E STAGECOACH RUN, EAGLE MOUNTAIN, UT 84005

ELECTED OFFICIALS PRESENT: Mayor Tom Westmoreland, Councilmembers Donna Burnham, Melissa Clark, Rich Wood, and Brett Wright.

ELECTED OFFICIALS PRESENT ELECTRONICALLY: Councilmember Jared Gray

CITY STAFF PRESENT: Steve Mumford, Interim City Manager; Fionnuala Kofoed, Assistant City Manager/City Recorder; Clifford Strachan, Director of Legislative Affairs; Marcus Draper, City Attorney; Kimberly Ruesch, Director of Administrative Services; Tyler Maffitt, Communications Manager; Natalie Winterton, Grants Coordinator/Management Analyst; Terrence Dela Pena, Finance/Management Analyst; Brandon Larson, Planning Director; Todd Black, Wildlife Biologist/Environmental Planner; Robert Hobbs, Senior Planner; David Stroud, Senior Planner; Steven Lehmitz, Planner; Beth Fewkes, Planner; Mack Straw, Public Utilities Manager; Gina Olsen, Deputy Recorder; David Salazar, Assistant City Engineer; Zac Hilton, Streets and Storm Drain/Parks and Recreation Manager; Brad Hickman, Public Works Director; and Eric McDowell, Chief Deputy Sheriff.

CITY STAFF PRESENT ELECTRONICALLY: Lianne Pengra, Chief Deputy Recorder; and Chas Glenn, Executive Assistant.

4:00 PM WORK SESSION – CITY COUNCIL CHAMBERS

Mayor Westmoreland called the meeting to order at 4:02 PM.

1. DISCUSSION AND INFORMATION ITEMS

1.A. DISCUSSION – Affordable Housing Plan

[The recording of the discussion can be found online here at 01:25:19.](#)

This item was discussed after Item 1.B.

Grants Coordinator/Management Analyst Natalie Winterton presented the item. In 2022, Eagle Mountain City hired LRB (formerly LYRB) to create an "Affordable Housing Plan" that would provide the City with recommendations on how to utilize its RDA affordable housing dollars. LRB has completed their study. Throughout the time of the study, Staff was researching and studying affordable housing strategies as well. After LRB finished its study, Staff added an extra chapter to the report to provide additional insight on LRB's recommended strategies as well as share some of Staff's findings. Although there are many moving parts in the affordable housing effort, this document would serve to encompass the state-required Moderate-Income reporting as well as any additional efforts the City may wish to pursue.

1.B. DISCUSSION – Downtown Master Plan, MHTN Architects

[The recording of the discussion can be found online here at 00:49:40.](#)

This item was discussed after Item 1.C.

Ryan Wallace, Vincent Olcott, and Emily Seang with MHTN Architects presented the item. MHTN was selected by the City Council to assist in the creation of a Downtown Master Plan. MHTN previously held meetings with staff to gather contextual understanding of the City and to develop processes for engagement with stakeholders and the public. During the City Council meeting, MHTN discussed the Council's desires related to the Downtown Master Plan.

1.C. DISCUSSION – Alternative Energy Code Amendment

[The recording of the discussion can be found online here at 00:00:38.](#)

This item was discussed prior to Item 1.B.

Planning Director Brandon Larsen introduced the item. Adrienne Belle with Hart and Holland, Evelyn Carpenter with Solas Energy Consulting, and Christine Mikell with Enyo Battery addressed the Council. The City has indicated a desire to consider how it assesses and entitles alternative energy applications, such as solar energy. Staff has been working with a group interested in submitting an application for a battery storage facility. This group has prepared draft language for the City to consider, relative to alternative energy.

2. AGENDA REVIEW

10.C. SITE PLAN – Belle Street Seminary

[The recording of the discussion can be found online here at 01:44:55.](#)

Planner Ashley Swensen addressed the Council regarding the item. The proposed site plan is for a seminary building for the new middle school, located at 9068 N Belle Street, Utah County Parcel Number 38:716:0002.

11.B. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Authorizing Extended Hours for Construction Operations for QTS, as Allowed in Eagle Mountain Municipal Code Section 8.15.080(G).

[The recording of the discussion can be found online here at 01:49:20.](#)

The Council discussed options for extended hours for construction on the QTS site. QTS has begun work on their data center campus just west of the Meta data center campus. They are planning for a rapid pace of construction, aiming to have a significant amount of concrete poured before the weather gets too cold. EMMC 8.15.080(G) and 8.15.070 generally restrict when construction can take place as a means of limiting the amount of noise produced at sites during primarily the night-time hours. The QTS campus is in a remote part of the city with the nearest homes being 4 homes in Fairfield that are approximately 0.7 miles from the center-point of the QTS property. QTS anticipates noise levels would be typical for commercial/industrial construction. As part of the variance, allowing for 24/7 construction, QTS has

prepared mitigation measures to greatly reduce the light produced onsite, knowing that has been a concern to residents at other projects.

- 12.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Approving the Third Amendment to the 2024-2025 Fiscal Year Annual Budget.

[The recording of the discussion can be found online here at 01:53:13.](#)

Director of Administrative Services Kimberly Ruesch, Public Utility Manager Mack Straw, and Streets and Storm Drain/Parks and Recreation Manager Zac Hilton addressed the Council regarding items in the budget amendment.

- 11.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving the First Amendment to the Master Development Agreement for the Triumph Subdivision.

[The recording of the discussion can be found online here at 02:00:07.](#)

Applicant Scot Hazard with Belle Street Investments addressed the Council regarding the reason for the request to amend the Master Development Agreement.

3. ADJOURN TO A CLOSED SESSION

MOTION: *Councilmember Wood moved to adjourn into a Closed Session for the purpose of discussion of pending or reasonably imminent litigation; the character, professional competence, or physical or mental health of an individual; and/or the purchase, lease, or exchange of real property, pursuant to Section 52-4-205(1) of the Utah Code, Annotated. Councilmember Clark seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Excused
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 02:05:01.](#)

The meeting was adjourned at 6:08 PM.

7:00 PM POLICY SESSION – CITY COUNCIL CHAMBERS

4. CALL TO ORDER

Mayor Westmoreland called the meeting to order at 7:21 PM.

5. PLEDGE OF ALLEGIANCE

Councilmember Wright led the Pledge of Allegiance.

6. INFORMATION ITEMS/UPCOMING EVENTS

7. PUBLIC COMMENTS

Mayor Westmoreland opened the public comment period at 7:22 PM. As there were no comments, he closed the public comment period.

8. CITY COUNCIL/MAYOR ITEMS

The recording of the Mayor and Councilmember comments can be found online here at 02:08:28.

The Mayor and Councilmembers offered comments to the public.

CONSENT AGENDA

9. MINUTES

- 9.A. October 1, 2024 Minutes – Regular City Council Meeting

10. PRELIMINARY PLATS & SITE PLANS

- 10.A. MASTER SITE PLAN/PRELIMINARY PLAT – The District
- 10.B. SITE PLAN – Dutch Bros
- 10.C. SITE PLAN – Belle Street Seminary

11. RESOLUTIONS

- 11.A. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving the First Amendment to the Master Development Agreement for the Triumph Subdivision.
- 11.B. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Authorizing Extended Hours for Construction Operations for QTS, as Allowed in Eagle Mountain Municipal Code Section 8.15.080(G).
- 11.C. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Approving an Interlocal Cooperation Agreement between the Redevelopment Agency of Eagle Mountain City and Eagle Mountain City for the Collection and Remittance of Incremental Property Taxes Collected from Property within the Triple Tail Community Reinvestment Area.
- 11.D. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Determining the Final Applicants for the City Manager Position.
- 11.E. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Appointing Vince Hogge as City Engineer, Effective October 28, 2024.

11.F. RESOLUTION – A Resolution of Eagle Mountain City, Utah, Appointing David Salazar as Acting City Engineer.

MOTION: *Councilmember Wright moved to approve the Consent Agenda. Councilmember Clark seconded the motion.*

[The recording of the motion can be found online here at 02:12:23.](#)

AMENDED MOTION: *Councilmember Wright moved to approve the Consent Agenda, with the extended hours for Item 11.B. determined to be 24 hours a day, 7 days a week. Councilmember Clark seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Excused
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 2:13:09.](#)

SCHEDULED ITEMS

12. ORDINANCES/PUBLIC HEARINGS

12.A. ORDINANCE/PUBLIC HEARING – An Ordinance of Eagle Mountain City, Utah, Approving the Third Amendment to the 2024-2025 Fiscal Year Annual Budget.

[The recording of the discussion can be found online here at 02:16:33.](#)

Director of Administrative Services Kimberly Ruesch presented the item. State statute requires the City to amend its budget to appropriate funds for increased expenses. The proposed ordinance is the third amendment to the 2024-2025 Fiscal Year Annual Budget.

Mayor Westmoreland opened the public hearing at 7:32 PM. As there were no comments, he closed the hearing.

MOTION: *Councilmember Burnham moved to approve an Ordinance of Eagle Mountain City, Utah, Approving the Third Amendment to the 2024-2025 Fiscal Year Annual Budget, as described with the total being \$155,990,118. Councilmember Clark seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Excused
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 02:18:08.](#)

- 12.B. ORDINANCE/PUBLIC HEARING - An Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Section 17.10.030 Definitions and Enacting Chapter 17.59 Easements.

[The recording of the discussion can be found online here at 02:18:51.](#)

Planner Steven Lehmitz presented the item. The proposed code amendment adds the definition of an easement and proposes EMMC 17.59 as a new chapter that establishes standards related to easements.

Mayor Westmoreland opened the public hearing at 7:48 PM.

MOTION: *Councilmember Wood moved to table an Ordinance of Eagle Mountain City, Utah, Amending the Eagle Mountain Municipal Code Section 17.10.030 Definitions and Enacting Chapter 17.59 Easements to the November 6, 2024 City Council meeting with the following instructions to the City Attorney:*

- 1. Add the definition for "Conservation Easement;"*
- 2. Change the land authority for conservation easement approval to the Planning Commission; and*
- 3. Change the land authority for golf course easement approval to the City Council.*

Councilmember Wright seconded the motion.

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Excused
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 02:34:10.](#)

13. RESOLUTIONS/PUBLIC HEARINGS

- 13.A. RESOLUTION/PUBLIC HEARING - A Resolution of Eagle Mountain City, Utah Amending the Eagle Mountain City Consolidated Fee Schedule.

[The recording of the discussion can be found online here at 02:35:19.](#)

Director of Administrative Services Kimberly Ruesch presented the item. The proposed amendments are within Sections 6.1 Animal Control Fees, 10.1 Master Development Fees, 10.3 Conditional Uses, 13.1 Building Permit Fees, and 13.4 Other Building Department Fees.

Mayor Westmoreland opened the public hearing at 7:59 PM. As there were no comments, he closed the hearing.

MOTION: *Councilmember Wood moved to approve a Resolution of Eagle Mountain City, Utah Amending the Eagle Mountain City Consolidated Fee Schedule. Councilmember Clark seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Excused
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 02:44:40.](#)

14. ORDINANCES

- 14.A. ORDINANCE - An Ordinance of Eagle Mountain City, Utah, Establishing a Special Revenue Fund Titled the Affordable Housing Fund.

[The recording of the discussion can be found online here at 02:45:33.](#)

Director of Administrative Services Kimberly Ruesch presented the item. The Redevelopment Agency of Eagle Mountain City (RDA), as allowed by Utah State Code 17C-5-307(3), created and continues to operate multiple community reinvestment project areas (CRAs). If a project area budget provides more than \$100,000 of funds distributed to the Agency, ten percent is allocated for housing. To date, the RDA has collected \$2,067,455.57 in affordable housing dollars. The City has adopted five strategies to support moderate income housing programs, and some of these strategies can use affordable housing dollars collected pursuant to the CRAs. One of these strategies, a mortgage assistance program for public employees, is being developed by the City.

MOTION: *Councilmember Wright moved to approve an Ordinance of Eagle Mountain City, Utah, Establishing a Special Revenue Fund Titled the Affordable Housing Fund, adjusting the language that references the date, replacing “adopted” with “received.” Councilmember Wood seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Excused
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 02:49:20.](#)

- 14.B. ORDINANCE - An Ordinance of Eagle Mountain City, Utah, Enacting Eagle Mountain Municipal Code Chapter 17.32 Historic Zones.

[The recording of the discussion can be found online here at 02:52:04.](#)

Senior Planner Robert Hobbs presented the item. A public hearing was held, and the item was tabled at the July 2, 2024 City Council meeting. The proposed ordinance enacts Eagle Mountain Municipal Code Chapter 17.32 Historic Zones to assist the City in sharing and enforcing its development rules in a consistent and legally supportable manner, while awaiting rezoning of some properties in the community, to bring them into compliance with 2024 codes.

MOTION: *Councilmember Wright moved to approve an Ordinance of Eagle Mountain City, Utah, Enacting Eagle Mountain Municipal Code Chapter 17.32 Historic Zones, striking Section 17.32.010(D). Councilmember Burnham seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	No
Brett Wright	Yes

The motion passed with a vote of 4:1.

[The recording of the motion can be found online here at 03:20:35.](#)

15. LEGISLATIVE ITEMS

15.A. UPDATE – Legislative Priorities List

[The recording of the discussion can be found online here at 03:22:00.](#)

Director of Legislative Affairs Clifford Strachan addressed the Council regarding the Legislative Priority List and upcoming State committee meetings.

MOTION: *Councilmember Wright moved to add the following items to the Legislative Priorities List:*

- 1. Gather information about housing data and entitlements as they exist currently, such as size, scale, unit types, and housing types, so the data can be utilized in the future for greater evaluation, and begin to strategize how to communicate that effectively with state legislative leaders*
- 2. Add to the Transportation Master Plan the planning of the south and west end of the City, adding a corridor to the west from Mid Valley and additional transportation corridors such as one near the IHC property.*

Councilmember Wood seconded the motion.

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 03:30:12.](#)

16. CITY COUNCIL/MAYOR'S BUSINESS AND LIAISON REPORTS

[The recording of the Mayor and Councilmember comments can be found online here at 03:43:59.](#)

The Mayor and Council offered comments and reports on committees to which they are assigned as liaisons.

17. COMMUNICATION ITEMS

17.A. Department Updates

17.B. Upcoming Agenda Items

18. ADJOURNMENT

MOTION: *Councilmember Wright moved to adjourn the meeting at 9:06 PM. Councilmember Burnham seconded the motion.*

Donna Burnham	Yes
Melissa Clark	Yes
Jared Gray	Yes
Rich Wood	Yes
Brett Wright	Yes

The motion passed with a unanimous vote.

[The recording of the motion can be found online here at 03:51:37.](#)

The meeting was adjourned at 9:06 PM.

Approved by the City Council on November 6, 2024.



Lianne Pengra, CMC
Chief Deputy Recorder

